



MANDAR DEODHAR

MUMBAI | Spanner in the Works

It may be called the most high profile case in the history of India, but the 26/11 trial, first dismissed as an open and shut affair, is getting bogged down in numerous delays. Even before the trial has begun, the preliminary proceedings themselves are crawling along. First, defence advocate Abbas Kazmi submitted a plea asking for accused Ajmal Amir Kasab to be tried in a juvenile court and then sought adjournment for four weeks. Then, an Urdu translation of the 11,000-page chargesheet was requested—for Kasab's perusal. Though the translation request was rejected by Special Judge M.L. Tahilyani as "irrelevant", the juvenile application continues to be heard, even as the court has been adjourned till May 2 to allow Kazmi sufficient time for "preparation". Medical reports by a panel of four doctors from Grant Medical College and J.J. Hospital have unanimously confirmed that Kasab is above 20 years of age. In addition, special public prosecutor Ujjwal Nikam examined two witnesses before whom Kasab had acknowledged his age as 21. They were Arthur Road Jail Superintendent Swati Sathe and Venkat Ramamurthy, the doctor at Nair Hospital's trauma ward who treated Kasab on November 27. Kazmi, however, is not satisfied with cross-examining the two witnesses and has now sought the court's permission to call two more medical officers from Nair Hospital responsible for preparing the documents for Kasab's admission in the hospital. If Kasab is proved juvenile, he can only be imprisoned for a maximum of three years. He is charged with killing 166 people during the Mumbai attacks. *by Swati Mathur*



THE MCOCA COURT WHERE KASAB (ABOVE) IS BEING TRIED

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deaths for which Kasab has been charged as a co-conspirator in the 26/11 Mumbai attacks.